

HUMAN RIGHTS LIST

VCAT Reference: H114/2020

28 April 2020

Mr Richard McLean
2 McCubbin St
FOOTSCRAY VIC 3011

Dear Sir

REJECTION OF APPLICATION

I acknowledge receipt of your application to the Human Rights List of VCAT.

Section 71 of the *Victorian Civil and Administrative Tribunal Act 1998* (the Act) provides that the principal registrar may reject an application if it —

- is made by a person not entitled to make it;
- is lodged after the expiry of the period specified in the enabling enactment; or
- does not otherwise comply with the Act, the regulations or rules.

I have rejected your application under section 71(1) of the VCAT Act 1998, because you are not entitled to bring the claim.

According to the information in the application, you made a complaint about these issues to the (then) Equal Opportunity Commission in about 2004, under the Equal Opportunity Act 1995 (the old Act). Under the old Act, VCAT could only deal with a discrimination complaint after it had been referred to us by the Commission. Your complaint was not referred to us, according to what you have said in your application.

The 1995 Act was replaced by the Equal Opportunity Act 2010 (the new Act) and mostly came into operation on 1 August 2011. The transitional provisions (section 194) in the new Act say that a person can only apply to VCAT about something that happened before 1 August 2011 if they had not lodged a complaint under the old Act before that date. Because you lodged a complaint under the old Act with the Commission, we have no power to deal with the same complaint now.

You may wish to seek legal advice about whether there is a way to bring an action in a court to enforce the agreement entered into at the time.

Victorian Civil and Administrative Tribunal
William Cooper Justice Centre
5/223 William Street Melbourne VIC 3000
PO Box 13193 Law Courts Melbourne VIC 8010
Ausdoc DX 210613 Melbourne

Website www.vcat.vic.gov.au
Email humanrights@vcat.vic.gov.au

Telephone 1300 01 8228
(1300 01 VCAT)

Under Section 71(2) of the Act you may request the Principal Registrar to refer your application to the Tribunal for a review of this rejection. Any request to review the rejection of your application must be made in writing. You may wish to obtain independent legal or professional advice to ascertain what legal avenues may be available to you prior to making your application.

Yours sincerely



A. Collins

Deputy Registrar

(Delegate of the principal registrar)

VICTORIAN CIVIL AND ADMINISTRATIVE TRIBUNAL

Human Rights List

VCAT Reference: H114/2020

APPLICANT: Mr Richard McLean

RESPONDENT: The Age (Fairfax)

WHERE HELD: In Chambers

BEFORE: A. Collins

DATE OF FINALISATION: 28 April, 2020

FINALISATION OF PROCEEDINGS

The Applicant having lodged an application, the proceeding is marked as "Rejected" pursuant to section 71(1) of the *Victorian Civil and Administrative Tribunal Act 1998*.


A. Collins
Deputy Registrar



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